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State of Andhra Pradesh - Act

A.P. State Council for Physiotherapy Act, 2019

ANDHRA PRADESH

India

A.P. State Council for Physiotherapy Act, 2019

Act 7 of 2019

Published on 1 January 2019

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A.P. State Council for Physiotherapy Act, 2019

(Act

No.7 of 2019

)

Last Updated 12th June, 2019

An Act to provide for the Constitution of the Andhra Pradesh State Council for Physiotherapy for the purpose of Co-ordination and Determination of Standards of Education in the Field of Physiotherapy, to Regulate the Practice of Physiotherapy and for the Maintenance of Register of Physiotherapists in the State of Andhra Pradesh and for matters connected therewith or incidental thereto.

Be it enacted by the Legislature of the State of Andhra Pradesh in the Seventieth Year of the Republic of India, as follows:

Chapter I

Preliminary

1.

Short title, extent and commencement.

(1)

This Act may be called the Andhra Pradesh State Council for Physiotherapy Act, 2019.

(2)

It extends to the whole of the State of Andhra Pradesh.

(3)

It shall come into force on such date as the State Government may, by notification in the Andhra Pradesh Gazette, appoint:

Provided that different dates may be appointed for different provisions of this Act and any reference in any such provisions to the commencement of this Act shall be construed as a reference to the coming into force of that provisions.

2.

Definitions.

- In this Act, unless the context otherwise requires,-

(a)

"Council" means the Andhra Pradesh State Council of Physiotherapy constituted under Section 3;

(b)

"Inspector" means an Inspector appointed by the Council under Section 22;

(c)

"Institution" means any institution within or outside India which grants degrees in Physiotherapy;

(d)

"Member" means a member of the Council;

(e)

"Notification" means a notification published in the Andhra Pradesh Gazette and the word "Notified" shall be construed accordingly;

(f)

"Physiotherapist" means a person who possesses recognized Physiotherapy qualification and whose name has been enrolled in the register maintained under Section 33;

(g)

"Physiotherapy" means a branch of modern medical science which includes examination, assessment, interpretation, physical diagnosis, planning and execution of treatment and advice to any person for the purpose of preventing, correcting, alleviating and limiting dysfunction, acute and chronic bodily malfunction, including life saving measures via chest physiotherapy in the intensive care units, curing physical disorders or disability, promoting physical fitness, facilitating healing and pain relief and; treatment of physical and psychosomatic disorder through modulating physiological and physical response using exercises, physical agents, activities and devices including mobilization, manipulations, mechanical, electrical, and thermal agents, including therapeutic ultrasound and therapeutic Light Amplification by Stimulation Emission of Radiation (LASER), and electrotherapy including electrophysiology for diagnosis, treatment and prevention;

(h)

"Prescribed" means prescribed by rules made under this Act;

(i)

"President" means the President of the Council;

(j)

"Profession" means the profession of Physiotherapy;

(k)

"Recognized qualification" means qualification in Physiotherapy obtained from any of the Universities or Institutions mentioned in the Schedule;

(l)

"Register" means the register of Physiotherapists maintained by the Council under Section 33;

(m)

"Registered practitioner" means a Physiotherapist whose name is entered and continues to remain on the register of the Council;

(n)

"Registrar" means the Registrar appointed under sub-section (1) of Section 13;

(o)

"Regulations" means regulations made by the Council;

(p)

"Rules" means rules made under this Act;

(q)

"Schedule" means the Schedule appended to this Act;

(r)

"Vice-President" means the Vice-President of the Council.

Chapter II

Andhra Pradesh State Council for Physiotherapy

3.

Constitution and Composition of Council.

(1)

The State Government shall, as soon as may, after the commencement of this Act, constitute a Council to be called the "Andhra Pradesh State Council for Physiotherapy".

(2)

The Council shall consist of the following members, namely,-

(i)

The Secretary to Government, Health, Medical and Family Welfare Department or the Director of Public Health & Family Welfare, as may be nominated by the State Government, ex-officio;

(ii)

The Director, Medical Education; ex-officio;

(iii)

One member not below the rank of Deputy Secretary to Government, Health and Family Welfare Department, dealing with the matters relating to Physiotherapy, to be nominated by the State Government;

(iv)

One member not below the rank of Deputy Secretary to Government, Finance Department, to be nominated by the State Government;

(v)

One member not below the rank of Deputy Secretary to Government, Law Department, to be nominated by the State Government;

(vi)

One member from the Andhra Pradesh Medical Council to be nominated by the State Government;

(vii)

Four members from Physiotherapists, to be elected from amongst the registered practitioners enrolled, in the register of Physiotherapists;

(viii)

Four Physiotherapists from recognized Physiotherapy teaching institutions, holding teaching posts, representing from Dr. NTR University of Health Sciences, Vijayawada/ Sri Venkateswara Institute of Medical Sciences (SVIMS), Tirupati, to be nominated by the State Government;

(ix)

Two Physiotherapists, to be nominated by the State Government from the Government Institutions or Hospitals imparting physiotherapy education;

(x)

Two Physiotherapists to be nominated by the State Government to represent such Physiotherapy organizations which can represent the interests of Physiotherapy:

Provided that the election of the members referred to in clause (vii) shall be held at such place and in such manner as may be prescribed.

(3)

Notwithstanding anything contained in sub-section (1),-

(i)

in respect of the constitution of the Council for the first time under this Act, the members thereof including the President and the Vice-President as mentioned in Section 6 shall be nominated by the State Government from amongst persons qualified to be elected or nominated as members; and

(ii)

the members so nominated shall hold office for such period not exceeding three years.

4.

Incorporation of Council.

- The Council shall be a body corporate by the name of the "Andhra Pradesh State Council for Physiotherapy" having perpetual succession and a common seal with power to acquire, hold and dispose of property, both movable and immovable and shall by the said name sue and be sued.

5.

Objects of Council.

- The objects of the Council shall be as follows,-

(i)

to coordinate and determine the standards of Physiotherapy education at all levels;

(ii)

to regulate the practice of the profession by persons possessing recognize Physiotherapy qualification;

(iii)

to maintain the register of Physiotherapists for the State of Andhra Pradesh;

(iv)

to advise the Government in matters relating to the requirement of manpower i the field of Physiotherapy.

6.

President and Vice-President of Council.

(1)

There shall be a President of the Council who shall be enrolled on the Register and shall be elected by the members of the Council from amongst themselves. He shall, subject to the provisions of this Act, hold office for a term of five years from the date he enters upon his office.

(2)

There shall be a Vice-President of the Council who shall be enrolled on the Register and shall be elected by the members of the Council from amongst themselves. He shall, subject to the provisions of this Act, hold office for a term of five years from the date he enters upon his office.

(3)

The President or the Vice-President shall, subject to the other provisions of this Act, be eligible for re-election.

7.

Mode of Election.

- Elections under this Chapter shall be conducted in the prescribed manner and where any dispute arises relating to such election, it shall be referred to the State Government whose decision shall be final.

8.

Term of office and filling up of casual vacancies.

(1)

Subject to the provisions of this section, an elected or nominated member shall hold office for a term of five years from the date of his election or nomination, as the case may be :

Provided that the member nominated under Section 3 shall hold office during the pleasure of the State Government.

(2)

An elected or nominated member may, at any time, resign his membership by writing under his hand addressed to the President and the seat of such member shall, from the date on which such resignation is accepted by the President

become vacant.

(3)

An elected or nominated member shall be deemed to have vacated his seat,-

(i)

if he is absent without the permission of the Council from its three consecutive ordinary meetings and his seat is declared vacant by the Council; or

(ii)

in the case of a member whose name is required to be included in the Register of Physiotherapists, his name is removed from such Register; or

(m)

if he ceases to be a member of the Council; or

(iv)

if he becomes subject to any of the disqualifications mentioned in Section 9.

(4)

Any vacancy occurring of the office of any member, on account of any reason whatsoever, shall be filled by fresh election or nomination, as the case may be, and the person so elected or nominated shall hold office, subject to the provisions of sub-section (1) for the remaining term for which the member was elected or nominated, as the case may be.

(5)

If a vacancy occurs of the office of the President or the Vice-President, whether by reason of his death, resignation or otherwise, it shall be filled by fresh election by and from amongst the members of the Council.

(6)

A member of the Council shall be eligible for re-election or re-nomination, but no member shall be eligible for re-election or re-nomination, if, he has been a member continuously for a period of ten years.

(7)

Where the said term of five years is about to expire in respect of any member, a successor may be elected or nominated at any time within three months before the said term expires but he shall not assume office until the said term has expired.

9.

Disqualifications.

- No person shall be a member of the Council, if,-

(i)

he is, or becomes of unsound mind and stands so declared by a competent Court; or

(ii)

he is or has been, convicted of any offence involving moral turpitude, which, in the opinion of the Government renders him unfit to be a member of the Council;

(iii)

he is or at any time has been adjudicated as undischarged insolvent: or

(iv)

his name has been removed from the Register and has not been re-entered therein.

10.

Meeting of Council.

(1)

The Council shall meet atleast once in a year at such time and place as may be appointed by the Council:

Provided that the first meeting of the Council shall be held at such time and place as may be appointed by the President.

(2)

One-third members of the total members of the Council shall form a quorum. When there is no quorum at a meeting, the presiding authority shall, after waiting for not less than thirty' minutes for such quorum, adjourn the meeting for such hour or some future day as it may notify on the notice board at the office of the Council, and the business which would have been brought before the original meeting had there been a quorum thereat, shall be brought before the adjourned meeting and may be disposed of at such meeting or any subsequent adjournment thereof, whether there be a quorum or

not.

(3)

Atleast fifteen clear days notice, in writing, alongwith agenda proposed to be considered at a meeting of the Council shall be given to the members for holding an ordinary meeting. The notice of meeting shall be served through registered post with acknowledgement due.

(4)

The agenda of the meeting shall be settled by the Secretary in consultation with the President.

(5)

An extra-ordinary meeting of the Council shall be convened if a requisition in writing by not less than one-fifth of the total members of the Council is made to the Secretary :

Provided that atleast seven clear days notice shall be given for convening such meeting.

Explanation. - The expression "clear days" in this section does not include the day of the issue and the day of the receipt of the notice.

11.

Proceedings of Meetings.

(1)

The proceedings of every meeting of the Council shall be treated as confidential and no person shall, without the previous resolution of the Council, disclose any portion thereof:

Provided that nothing in this section shall be deemed to prohibit any person from disclosing or publishing the text of any resolution adopted by the Council, unless the Council directs such resolution also to be treated as confidential.

(2)

A copy of the proceedings of every meeting of the Council shall within fifteen days from the date of the meeting, be forwarded to the State Government or any other authority appointed by it on its behalf.

12.

Vacancies, etc., not to invalidate proceedings of Council.

- No act or proceedings of the Council shall be invalid merely by reason if,-

(i)

any vacancy in or any defect in the constitution of the Council; or

(ii)

any defect in the election or nomination of a person as a member of the Council; or

(iii)

any irregularity in the procedure of the Council not affecting the merits of the case.

13.

Appointment of Registrar, Deputy Registrar, officers and employees of Council.

(1)

The Council shall, with the previous sanction of the State Government appoint the Registrar and the Deputy Registrar, who shall be qualified Physiotherapy graduates.

(2)

The Executive Committee may, from time to time, grant leave to the Registrar:

Provided that, if the period of leave does not exceed one month, the leave may be granted by the President.

(3)

During any temporary vacancy in the office of the Registrar due to leave or any reason, the Deputy Registrar shall act as Registrar. In case of non-availability of Registrar and Deputy Registrar, the Executive Committee may, with the previous sanction of the State Government, appoint another person to act in his place and any person so appointed shall, for the period of such appointment, be deemed to be the Registrar for the purpose of this Act:

Provided that when the period of such vacancy does not exceed one month, the appointment may be made by the President, who shall forthwith report such appointment to the Executive Committee and the State Government.

(4)

The Council shall adopt the Andhra Pradesh Civil Services (Classification, Control and Appeal) Rules, 1991 mutatis mutandis.

(5)

The Council may, with the previous sanction of the State Government, suspend, dismiss or remove any person appointed as Registrar, or impose any other penalty upon him in the manner as may be prescribed.

(6)

Save as otherwise provided by this Act, the salary, and allowances and other conditions of service of the Registrar shall be such as may be prescribed.

(7)

The Registrar shall be the Secretary and the Executive Officer of the Council. He shall attend all meetings of the Council, and of the Executive Committee, and shall keep minutes of the meetings and names of members present and of the proceedings of such meetings.

(8)

The accounts of the Council shall be kept by the Registrar in the prescribed manner.

(9)

The Registrar shall have such supervisory powers over the staff as may be prescribed, and may perform such other duties and discharge such other functions as may be specified in this Act, or as may be prescribed.

14.

Executive Committee and other Committees.

(1)

The Council shall constitute from among its members an Executive Committee and other committees for such general or special purposes and for such tenure as the Council considers necessary for carrying out the functions under this Act.

(2)

The Executive Committee shall consist of the following, namely,-

(a)

The President of the Council;

(b)

the Vice-President of the Council;

(c)

Two members of the Council representing Physiotherapists, to be nominated by the President of the Council;

(d)

the Director of Public Health and Family Welfare of the Government or his nominee;

(e)

One member representing the Medical council of Andhra Pradesh.

(3)

The President and the Vice-President of the Council shall be the Chairman and Vice-Chairman, respectively of the Executive Committee.

(4)

A member of the Executive Committee shall hold office as such until the expiry of his term of office as a member of the Council but subject to his being a member of the Council, he shall be eligible for re-nomination.

(5)

A member may resign his membership of the Committee by writing under his hand addressed to the Chairman of the Committee and action shall be taken to fill that seat in the same manner in which that seat was filled in.

(6)

The Executive Committee shall exercise and discharge such powers and duties as may be prescribed.

15.

Equivalence and Registration Committee.

(1)

There shall be an Equivalence and Registration Committee for the purpose of recommending the recognition of degrees granted by institutions imparting training in Physiotherapy and to consider matters relating to registration of Physiotherapists. The recommendations of this committee shall be subject to approval by the Executive committee and the Council, unless otherwise provided in this Act.

(2)

The Vice-President shall be Chairman of such committee. There shall be five other members nominated by the

President of the Council from amongst the members of the Council, representing educationists and specialists in different branches of Physiotherapy.

Chapter III

Functions of Council

16.

Prior permission for establishment of new Institutions, new course of study, etc.

(1)

Notwithstanding anything contained in this Act or any other law for the time being in force, with effect from the date as may be notified by the Government,-

(a)

no person shall establish an institution; or

(b)

no institution except with the previous permission of the State Government obtained in accordance with the provisions of this section shall,-

(i)

open a new or higher course of study or training including a postgraduate study or training which would enable a student of such course or training to qualify himself for the award of any recognized Physiotherapy qualification; or

(ii)

increase its admission capacity in any course of study or training including a postgraduate studies;

Explanation-I. - For the purpose of this section "person" includes any University or a Trust or a Society or an Institution or a Company but does not include the Central Government or the State Government.

Explanation-II. - For the purpose of this section "admission capacity" in relation to course of study or training (including postgraduate course of study or training) in an institution means the maximum number of students that may be fixed by the Council from time to time for being admitted to such course or training.

(2)

(a)

Every person or institution shall, for the purpose of obtaining permission under sub-section (1), submit to the Government a scheme in accordance with the provisions of clause (b) and the Government shall refer the scheme to the Council for its recommendations;

(b)

The Scheme referred to in clause (a) shall be in such form and contain such particulars and be preferred in such manner and be accompanied with such fees as may be prescribed.

(3)

On receipt of the scheme under sub-section (2), the Council may obtain such other particulars as may be considered necessary by it from the person or the institution concerned and thereafter it may,-

(a)

if the scheme is defective and does not contain any necessary particulars, give a reasonable opportunity to the person or institution, concerned for making a written representation and it shall be open to such person or institution to rectify the defects, if any, specified by the Council;

(b)

consider the scheme having regard to the factors referred to in sub-section (7) and submit the scheme together with its recommendations thereon to the State Government

(4)

The Government may after considering the scheme and the recommendations of the Council under sub-section (3) and after obtaining where necessary such other particulars as may be considered necessary by it from the person or institution concerned, and having regard to the factors referred to in sub-section (7), either approve (with such conditions, if any, as it may consider necessary), the scheme in which case such approval shall be deemed to a permission under sub-section (1) and thereon the State Government may, by notification in the Andhra Pradesh Gazette, amend the Schedule so as to include the name of such person or institution, or reject the scheme:

Provided that no scheme shall be rejected by the Government, except after giving the Person or Institution or Company concerned a reasonable opportunity of being heard:

Provided further that nothing in this sub-section shall prevent any Person or Institution whose scheme has been rejected by the Government to submit a fresh scheme and the provisions of this section shall apply to such scheme, as if such scheme has been submitted for the first time under sub-section (2).

(5)

Where within a period of one year from the date of submission of the scheme to the Government under sub-section (2), no order has been communicated to the person or institution submitting the scheme, it shall be deemed to have been approved by the Government in the form in which it had been submitted and accordingly, the permission of the Government required under sub-section (2) shall also be deemed to have been granted.

(6)

In computing the time limit specified in sub-section (5), the time taken by the person or institution concerned for submitting the scheme, in furnishing any particulars called for by the Council, or by the Government, shall be excluded.

(7)

The Council, while making its recommendations under clause (b) of sub-section (3) and the Government while passing an order, either approving or rejecting the scheme under sub-section (4) shall give due regard to the following factors, namely :-

(a)

whether the proposed institution or the existing institution seeking to open, a new or higher course of study or training, would be in a position to offer the minimum standards of education as prescribed by the Council under Section 24;

(b)

whether the person seeking to establish an institution or the existing institution seeking to open a new or higher course of study or training or to increase its admission capacity has adequate financial resources;

(c)

whether necessary facilities in respect of staff, equipments, accommodation, training and other facilities to ensure proper functioning of the institution or conducting the new courses of study or training or accommodating the increased admission capacity have been provided or would be provided within the time limit specified in the scheme;

(d)

whether any arrangement has been made or programme drawn to impart training to students likely to attend such institution or course of study or training by person having the recognized Physiotherapy qualifications;

(e)

whether any arrangement has been made or programme drawn to meet the requirement of manpower in the field of practice of Physiotherapy; and

(f)

such other factors as may be prescribed.

(8)

Where the State Government passes an order either approving or rejecting the scheme under this section, a copy of the order shall be communicated to the Person or Institution, concerned.

17.

Non-recognition of qualifications in certain cases.

(1)

Where any institution is established except with the previous permission of the State Government in accordance with the provisions of Section 16, no Physiotherapy qualification granted to any student of such institution shall be considered as the recognized qualification for the purposes of this Act.

(2)

Where any Institution opens a new or higher course of study or training (including a post-graduate course of study or training) except with the previous permission of the State Government in accordance with the provisions of Section 16, no qualification granted to any student of such Institution on the basis of such study or training shall be considered as the recognized qualification for the purposes of this Act.

(3)

Where any Institution increases its admission capacity in any course of study or training except with the previous permission of the State Government in accordance with the provisions of Section 16, no Physiotherapy qualification granted to any student of such institution on the basis of the increase in its admission capacity shall be recognized

Physiotherapy qualification for the purpose of this Act.

Explanation. - For the purposes of this section, the criteria for identifying a student who has been granted Physiotherapy qualification on the basis of such increase in the admission capacity shall be such as may be prescribed.

18.

Time for seeking permission for certain existing institution, etc.

(1)

If before the commencement of this Act, any person has established an institution or any institution has opened a new or higher course of study or training or increased its admission capacity, such Person or Institution, as the case may be, shall seek within a period of one year from the commencement of this Act, the permission of the State Government in accordance with the provisions of Section 16.

(2)

If any Person or Institution, as the case may be, fails to seek the permission under subsection (1), the provision of Section 17 shall apply so far as may be as if the permission of the State Government under Section 16 has been refused.

19.

Recognition of qualification granted by Universities, etc., in State for Physiotherapy professionals.

(1)

The qualifications granted by any University or other institutions in the State of Andhra Pradesh which are included in the Schedule shall be recognized qualifications for Physiotherapists.

(2)

Any University or other Institution which grants qualification for the Physiotherapy professionals is not included in the Schedule may apply to the State Government to have such qualification recognized and the State Government may after consulting the Council, by notification in the Andhra Pradesh Gazette, amend the Schedule so as to include the name of such University or Institution.

20.

Effect of Recognition.

(1)

Subject to the provisions of this Act, any Physiotherapy qualification included in the Schedule shall be sufficient qualification for enrollment in the Register of Physiotherapists.

(2)

No person shall after the date of the commencement of this Act, be entitled to be enrolled in the Register of Physiotherapists, unless he holds a recognized qualification:

Provided that any person who has immediately before the commencement of this Act become entitled to be enrolled shall on an application made in this behalf before expiry of one year from the said date be entitled to be enrolled:

Provided further that where there is any dispute as to whether a person is so entitled to be enrolled, the matter shall be referred to the Equivalence and Registration Committee which shall consider the reference and make recommendation to the Executive Committee whose decision shall be final.

(3)

Notwithstanding anything contained in sub-section (2),-

(a)

a citizen of India holding a qualification which entitles him to be registered with any Council of Physiotherapy in any foreign country, may with the approval of the Council, be enrolled as a Physiotherapist subject to passing the screening examination conducted by the Council from time to time.

(b)

a person not being a citizen of India who is employed as a Physiotherapist teacher in any hospital or institution in any State or Union Territory for the purpose of teaching, research or charitable work, may with the approval of the President, be enrolled temporarily in the Register for such period as may be specified in this behalf in the order issued by the President, subject to passing the screening examination conducted by the Council from time to time :

Provided that the practice by such person shall be limited to the hospital or institution to which he is attached:

Provided further that no such enrollment under clause (a) or clause (b) shall be permitted unless the Council satisfies itself that person possesses the requisite knowledge and skill to practice Physiotherapy by conducting a screening test

or such other test or examination as may be prescribed.

21.

Power to require information as to courses of study and training and examinations.

- Every University or Institution in Andhra Pradesh which grants any recognized qualification or a recognized higher qualification shall furnish such information as the Council may, from time to time require, as to the course of the study and training and examination to be undergone in order to obtain such qualification and generally as to requisites for obtaining such qualification.

22.

Inspectors.

(1)

The Executive Committee may, subject to regulations, if any, appoint such number of Inspectors as it deems necessary to inspect any institution where education or training in Physiotherapy is given, or to attend any examination held for the purpose of granting any recognized qualification or recognized higher qualification.

(2)

The Inspectors appointed under this section shall not interfere with the course of any examination but they shall report to the Executive Committee; on the sufficiency of the standard of the examinations and the courses of study and training at every institution which they inspect and on any other matters with regard to which the Executive Committee may require them to report.

(3)

The Executive Committee, after consulting the Equivalence and Registration Committee, shall forward a copy of such report to the person or institution concerned and shall also forward such a copy with remarks, if any, to the State Government.

23.

Withdrawal of recognition.

(1)

When upon report by the Executive Committee, it appears to the Council that, -

(a)

The courses of study and examination to be undergone to obtain a recognized qualification from any University or Institution in the State or the conditions for admission to such courses or the standards of proficiency required from candidates at such examinations;

(b)

The staff, equipment, accommodation and training provided in such University or Institution, are not in conformity with the regulations made under the Act or fall short of the standard prescribed by the Council, the Council shall make recommendation to that effect to the State Government.

(2)

The State Government shall after considering such recommendation shall forward it, alongwith such remarks as it deems necessary, to the University or Institution with an intimation of the period within which the university or Institution may submit its explanation to the State Government.

(3)

On the receipt of the explanation or where no explanation is submitted within the period fixed, then on the expiry of that period, the State Government may, after making such inquiry, if any, as it may think fit, by notification in the Andhra Pradesh Gazette, direct that an entry shall be made in the Schedule against the names of the said University or Institution and the qualification conferred by them declaring that the qualification conferred by the said University or Institution shall be a recognized qualification only when granted before a specified date.

24.

Prescription of standards of education in Physiotherapy.

(1)

The Council may prescribe by regulations the minimum prescription of standards of education in Physiotherapy required for granting recognized qualification in Andhra Pradesh.

(2)

The draft regulations and all subsequent draft amendments thereof shall be sent by the Council to the State Government

for prior approval.

(3)

In particular and without prejudice to the generality of the foregoing power, the regulations may provide for,-

(a)

the nature, period of study and of practical training to be undertaken before admission to an examination;

(b)

the equipments and facilities to be provided for students undergoing approved course of study;

(c)

the subjects of examinations and standards to be attained;

(d)

any other conditions of admissions to examinations.

(4)

The regulations shall be published in the Andhra Pradesh Gazette and in such manner as the Council may direct.

(5)

The Executive Committee shall from time to time report to the Council on the efficacy of these regulations and may recommend to the Council for such amendments thereof as it may think fit.

25.

Renewal of registration.

- Every enrolment of a person as a Physiotherapist made in the register shall remain in force for a period of five years and may be renewed from time to time for a period of five years on an application being made by him in such form and in such manner, within such period and on payment of such fees as may be prescribed.

26.

Professional Conduct.

(1)

The Council may make regulations prescribing the standards of professional conduct and etiquette and a code of ethics for the conduct of Physiotherapists.

(2)

The regulations made under sub-section (1) may specify which violations thereof shall constitute professional misconduct and such provisions shall have effect notwithstanding anything contained in any law for the time being in force.

(3)

Whenever the Executive Committee after such enquiry as it thinks fit, recommends that the name of any person enrolled in the Register of Physiotherapists be removed there from, it shall report to the Council and the Council shall after such enquiry as it may deem fit, by order, direct the removal of the name of such person from the said Register either permanently or for such period as may be specified in the order.

(4)

Any person aggrieved by an order of the Council may prefer an appeal to the State Government in such form and manner, within such time and on payment of such fees as may be prescribed.

(5)

On receipt of such appeal, the State Government may, after giving the person concerned an opportunity of being heard may pass such order as it deems fit which shall be final and binding.

Chapter IV

Finance, Accounts, Audit and Return

27.

Payment to council.

- The State Government may, after due appropriation made by the Legislative Assembly and Legislative Council by law in this behalf, pay to the Council in each financial year such sums as it may consider necessary for the performance of functions of the Council under this Act.

28.

Fund of council.

(1)

The Council shall have its own fund and all sums which may from time to time be paid to it by the State Government and all the receipts of the Council (including registration fees for inspection of institutions, and any sums received from any authority or person) shall be credited to the fund and all payments by the Council shall be made there from.

(2)

The surplus money, if any, of the fund shall be invested in the manner as may be prescribed and the money required for the administration of the Council shall be deposited in the nationalized banks.

(3)

The Council may spend such sums as it thinks fit for performing its functions under this Act, and such shall be treated as expenditure payable under this Act.

29.

Budget.

- The Council shall prepare, in such form and at such time each year as may be prescribed, a budget in respect of the next financial year showing the estimated receipts and expenditure and copy thereof shall be forwarded to the State Government.

30.

Annual report.

- The Council shall prepare once in every year, in such form and at such time as may be prescribed an annual report giving a true and full account of its activities during the previous year, and copy thereof shall be forwarded to the State Government.

31.

Accounts and Audit.

(1)

The Council shall cause to be maintained such books of accounts and other books in relation to its accounts in such form and in such manner as may be prescribed.

(2)

The accounts of the Council shall be audited by the Director of State Audit as per the provisions of the Andhra Pradesh State Audit Act, 1989 (A.P. Act No.9 of 1989).

(3)

The accounts of the Council as certified by the Auditor with the audit report shall be forwarded annually to the State Government and State Government shall cause the same, to be laid before the Legislative Assembly and Legislative Council.

32.

Information to be furnished.

- The Council shall furnish reports, copies of its minutes, abstracts of its accounts and other information to the State Government as may be prescribed.

Chapter V

Registration

33.

Persons entitled to registration.

(1)

Every person possessing the qualification as a Physiotherapist mentioned in the Schedule, shall subject to the provisions contained in this Act and on payment of such fees as may be Prescribed in this behalf, be entitled to have his name entered in the Register, subject to such conditions as the Council may prescribe.

(2)

Every person applying for registration as Physiotherapist shall in his application make a declaration that he, is in full time practice of Physiotherapist and is not engaged in any other trade or business or profession. He shall further undertake that if, after registration he takes up or is engaged in some other profession or business, he shall forthwith inform the Council of such service or employment or engagement and shall cease to practice as Physiotherapist, and that his name shall be deleted from the register.

(3)

The application of registration shall be accompanied by all documents required to be produced as given in the

prescribed form.

(4)

The application for registration shall be submitted to the Secretary, who shall after scrutiny, place it before the Council in the next meeting for its recommendation.

(5)

The Council may require any candidate to appear personally before it in support of any statement made by him in his application to furnish such other particulars as may be required.

(6)

The Council shall consider such objections as may be raised against the registration of any person as Physiotherapist, and if necessary may call upon any person objecting to the registration.

(7)

After consideration of the contents of the application and objections, if any, if the Council is of the opinion that the person applying for registration is fit and proper person to be registered, it shall make an order granting the registration.

34.

Withdrawal of application.

- Where a person who after submitting application for registration, applies for withdrawal or his registration is refused, he shall be refunded the application fee after deducting one hundred rupees towards administrative expenses.

35.

Certificate of registration.

- When the application for registration is granted, a certificate of registration shall be issued in the prescribed form.

36.

Renewal of registration.

- Any person desirous of getting his registration renewed shall make an application to the Council in the prescribed form alongwith the prescribed fees.

37.

Removal of names from Register.

- The Council may, by order, remove from the Register the name of any practitioner who has been convicted of a cognizable offence as defined under the Code of Criminal Procedure, 1973 (Central Act No.2 of 1974), or has been found guilty of professional misconduct after due enquiry.

38.

Appeal against order of removal from Register.

(1)

Where the name of any person has been removed from the Register on any ground other than that he is not possessed of the requisite qualification for being required as Physiotherapist, may appeal, in the prescribed manner and on payment of such fees, as may be prescribed, to the Government whose decision thereon shall be final.

(2)

No appeal under sub-section (1) shall be admitted, if it is filed after the expiry of a period of thirty days from the date of the order under Section 37.

39.

Rights and privileges of registered members.

- No person, other than the Physiotherapist who possesses recognized Physiotherapy qualifications and is enrolled on the Register of the Council,-

(a)

shall hold office as Physiotherapist or any such office (by whatever designation called) in the Government or in any institution maintained by a local or other authority;

(b)

shall practice Physiotherapy anywhere in State of Andhra Pradesh and recover in respect of such practice any expenses or fees to which he may be entitled;

(c)

shall be entitled to sign or authenticate any certificate required by any law to be signed or authenticated by a Physiotherapist;

(d)

shall be entitled to give any evidence in any Court as an expert under the Indian Evidence Act, 1872 (Central Act 1 of 1872), on any matter relating to the Physiotherapy.

Chapter VI

Offences and Penalty

40.

Conferring, granting or issuing postgraduate degree, diploma, license, etc.; by unauthorized person or institution.

(1)

No person other than institution recognized or authorized under this Act shall confer, grant or issue or hold itself out as entitled to confer, grant or issue any degree, diploma, license, certificate or other document stating or implying that the holder, grantee or recipient is qualified to practice the Physiotherapy.

(2)

No person other than a Physiotherapist whose name is entered in the Register maintained under this Act shall practice Physiotherapy.

(3)

Any person who contravenes the provisions of sub-section (1) and if the person so contravening is an institution, the proprietor of the institute or the Chairperson and members of the managing board of the institute who knowingly or willfully authorizes or permits the contravention shall on conviction be punished with imprisonment for a term which may extend to two years and with fine which shall not be less than ten thousand rupees but which may extend to twenty-five thousand rupees.

(4)

Any person who contravenes the provisions of sub-section (2) shall on conviction be punished with imprisonment for a term which may extend to one year and with fine which shall not be less than five thousand rupees but which may extend to ten thousand rupees.

41.

Penalty for falsely claiming to be registered.

- If any person whose name is not for the time being entered on the Register, falsely represents that he is so entered or uses in connection with his name or title any words or letters reasonably calculated to suggest that his name is so entered, he shall be punishable, on first conviction, with fine which may extend to five thousand rupees, and on any subsequent conviction with imprisonment which may extend to six months or with fine which may extend to ten thousand rupees, or with both.

42.

Misuse of title.

- If any person,-

(a)

not being a person registered in a Register takes or uses the description of Physiotherapy practitioner, Physiotherapist consultant, or

(b)

not possessing a recognized Physiotherapy qualification uses a degree or a diploma or an abbreviation indicating or implying a Physiotherapy qualification, shall be punishable, on first conviction, with fine which may extend to five thousand rupees, and on any subsequent conviction with imprisonment which may extend to one year or with fine which may extend to ten thousand rupees, or with both.

43.

Failure to surrender certificate of registration.

- If any person whose name has been removed from the Register fails without sufficient cause, to surrender his certification of registration shall on conviction be punishable with fine which may extend to five hundred rupees per month of such failure.

44.

Cognizance of offence.

- Notwithstanding anything contained in the Code of Criminal Procedure, 1973 (Act No.2 of 1974), no Court shall take cognizance of an offence Punishable under this Act except upon a complaint, in writing, made by a person authorized in

this behalf by the Council.

Chapter VII

Miscellaneous

45.

Directions by State Government.

(1)

The Council shall carry out such directions as may be issued from time to time by the State Government for the efficient administration of this Act.

(2)

If in connection with the exercise of its authority and the discharge of its functions by the Council under this Act, any dispute arises between the Council and the State Government, the decision of the Government on such dispute shall be final.

46.

Power to supersede council.

(1)

If the Government is of the opinion that the Council is unable to perform, or has persistently made default in the performance of the duty imposed on it by or under this Act, or has exceeded or abused its powers, or has willfully or without sufficient cause failed to comply with any direction issued by the State Government under Section 45, the State Government may, by notification in the Andhra Pradesh Gazette, supersede the Council for such period as may be specified in the notification:

Provided that before issuing a notification under sub-section (1), the State Government shall issue a notice to the Council and give reasonable time to it to show-cause.

(2)

Upon the publication of a notification under sub-section (1) superseding the Council, -

(a)

all the members of the Council shall, notwithstanding that their term of office has not expired, as from the date of supersession, vacate their offices as such members;

(b)

all the powers and duties which may, by or under the provisions of this Act, be exercised or performed by or on behalf of the Council shall, during the period of supersession, be exercised and performed by such person or persons as the Government may direct;

(c)

all property vested in the Council shall, during the period of supersession, vest in the State Government;

(d)

on the expiration of the period of supersession specified in the notification issued under sub-section (1), the Government may -

(i)

extend the period of supersession for such further period as it may consider necessary, or

(ii)

reconstitute the Council in the prescribed manner.

47.

Officers to be public servants.

- The members of the Council, the Registrar, the Deputy Registrar, Inspectors and other officers and employees appointed under this Act, shall be deemed to be the public servants within the meaning of Section 21 of the Indian Penal Code, 1860 (Central Act No.45 of 1860).

48.

Protection of action taken in good faith.

- No suit, prosecution or other legal proceedings shall lie against the State Government, the Council, the President, the Vice-President, the Registrar, the Deputy Registrar, members and officers and employees appointed under this Act for anything which is in good faith done or intended to be done in pursuance of the provisions of this Act or any rules made there under.

49.

Power to make rules.

(1)

The Government may, by notification make rules, for carrying out all or any of the purposes of this Act.

(2)

In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters :-

(i)

the management of the property of the Council, and the maintenance of accounts and audit;

(ii)

manner of election of the President and the Vice-President of the Council under Section 7;

(iii)

summoning and holding of the meetings of the Council, the time and place of such meetings and the conduct of business therein under Section 10;

(iv)

powers and duties of the President and the Vice-President of the Council;

(v)

procedure for appointment of Registrar, Deputy Registrar and other staff of the Council including the pay scales and other service conditions under Section 13;

(vi)

powers and duties of the Executive Committee, the summoning and holding of meeting thereof, the time and place of such meetings;

(vii)

term of office and the powers and duties of the Secretary and other officers and servants of the Council;

(viii)

the form and other particulars of the scheme for establishing new institutions, new courses of study, etc., under Section 16;

(ix)

procedure for determining the admission capacity for courses of Physiotherapy under Section 16;

(x)

the system for conducting a screening test or any other test or examination under Section 20;

(xi)

procedure for renewal of registration under Section 36;

(xii)

procedure for filing an appeal to the State Government against any order of the Council under Section 38;

(xiii)

manner in which the Council shall furnish information to the State Government, the format of the annual report and the form in which the budget would be prepared under Chapter IV;

(xiv)

procedure for seeking registration including the fee to be paid, format of the certificate of registration, manner in which the name of a practitioner may be removed from the Register, etc., under Chapter V;

(xv)

any other matter which is to be or may be prescribed under this Act.

(3)

Every rule made under this Act shall immediately after it is made, be laid before the State Legislature if it is in session, and if it is not in session, in the session immediately following for a total period of fourteen days which may be comprised in one session or in two successive sessions, and if, before the expiration of the session in which it is so laid or the session immediately following, the Legislature agree in making any modifications in the rule or in the annulment of the rule, the rule shall, with effect from the date of notification of such modification or annulment in the Andhra Pradesh Gazette is notified have effect only in such modified form or shall stand annulled, as the case may be, so however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

50.

Power to make regulations.

(1)

The Council may, with the previous sanction of the State Government, by notification in the Andhra Pradesh Gazette, make regulations not inconsistent with this Act and the rules made there under for enabling it to perform its functions and for carrying out the purposes of this Act.

(2)

In particular and without prejudice to the generality of the forgoing powers such regulations may provide for all or any of the following matters, namely:-

(i)

the maintenance and audit of the accounts of the Council;

(ii)

the registration of members of the Council;

(iii)

the rules of procedure for the transaction of business at the meeting of the Council and its committees;

(iv)

the procedure for appointments of Committees, their functions and duties;

(v)

the qualifications, procedure for appointment of inspectors and their power and duties;

(m)

the courses of study and period of training, to be undertaken, the subjects of examination and standards of proficiency therein to be obtained in any University or in any institution for grant of recognized Physiotherapist qualification;

(vii)

the standards of staff, equipment, accommodation, training and other facilities for study or training of the Physiotherapist;

(viii)

the conduct of examinations, qualifications of examiners and the conditions of the admission to such examinations;

(ix)

the standard of professional conduct and etiquette and code of ethics to be observed by Physiotherapist professionals under Section 26;

(x)

the manner in which and the conditions subject to which an appeal may be preferred under Section 37;

(xi)

any other matter which is to be, or may be, prescribed.

(3)

The State Government may, by notification in the Andhra Pradesh Gazette, rescind or modify any regulations made under this section and thereupon, the regulation shall cease to have effect or be modified, accordingly.

51.

Power to remove difficulties.

- If any difficulty arises in giving effect to the provisions of this Act, the State Government, may, by order published in the Andhra Pradesh Gazette, make such provision not inconsistent with the provisions of this Act, as may appear it to be necessary for removing the difficulty:

Provided that no order shall be made under this section after the expiry of two years from the commencement of this Act.

Schedule

(See Section 19)

(A)

Government Colleges - Nil

(B)

Self Finance Colleges

Sl. No

Name of the College

University

Qualifications

1

2

3

4

1

Kugler Memorial Physiotherapy Degree College,

Guntur

Dr. NTR, University of

BPT, MPT

Health Sciences, (Dr. NTRUHS) Vijayawada.

2

SIMS College of Physiotherapy, Guntur

Dr. NTRUHS

BPT, MPT

3

Swatantra Institute of Physiotherapy and

Rehabilitation, Rajahmundry

Dr. NTRUHS

BPT, MPT

4

Vijaya Institute of Medical Sciences College of

Physiotherapy,

BPT, MPT

Vijayawada

Dr. NTRUHS

5

Montessori Institute of Medical Sciences,

College of Physiotherapy,

Vijayawada

Dr. NTRUHS

BPT

6

VAPMS College of Physiotherapy, Visakhapatnam

Dr. NTRUHS

BPT, MPT

7

Konaseema Institute of Medical Sciences, (BPT),

Chaitanya Nagar, Amalapuram

Dr. NTRUHS

BPT

8

Sri Rama Educational Trust College of

Physiotherapy, Nellimerla, Vizianagaram District.

Dr NTRUHS

BPT, MPT

9

Sandhya Institute of Physiotherapy and

Rehabilitation, Kakinada

Dr NTRUHS

BPT, MPT

10

The College of Medical Technology, College of
Physiotherapy, Ongole

Dr NTRUHS

BPT

11

Dr. Vyaghreswarudu Institute of Physical
Medicine, Visakhapatnam

Dr NTRUHS

BPT

12

Emmi College of Physiotherapy, Phirangipuram
Guntur District.

Dr NTRUHS

BPT, MPT

13

Sai College of Physiotherapy and
Rehabilitation, Rajahmundry

Dr NTRUHS

BPT

14

GSL College of Physiotherapy, Rajahmundry

Dr NTRUHS

BPT

15

Raghava College of Physiotherapy, Kakinada

Dr NTRUHS

BPT

16

GEMS College of Physiotherapy, Srikakulam

Dr NTRUHS

BPT

17

Sai Balaji College of Physiotherapy, Ongole

Dr NTRUHS

BPT

18

NRI College of Physiotherapy, Chinakakani

Dr NTRUHS

BPT

19

Kasturi College of Physiotherapy, Ananthapur

Dr NTRUHS

BPT, MPT

20

Narayana College of Physiotherapy, Nellore

Dr NTRUHS

BPT, MPT

21

Sri P. Rami Reddy Memorial College of
Physiotherapy, Kadapa
Dr NTRUHS
BPT, MPT

22

Venkata Padmavathi College of Physiotherapy,
Tirupati
Dr NTRUHS
BPT, MPT

23

The Lakshmi Venkatesh T.G. Physiotherapy
College, Kumool
Dr NTRUHS
BPT, MPT

24

A.V. M College of Physiotherapy, Kadapa
Dr NTRUHS
BPT, MPT

25

Puttur College of Physiotherapy, Puttur
Dr NTRUHS
BPT

26

Dr. Penubala College of Physiotherapy, Tirupati
Dr NTRUHS
BPT

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